

other than the former tenant;

(c) advertises the rental unit, or the building that contains the rental unit, for sale;

(d) demolishes the rental unit or the building containing the rental unit; or

(e) takes any step to convert the rental unit, or the building containing the rental unit, to use for a purpose other than residential premises. 2017, c. 13, s. 10.

Same

(6) The period referred to in subsection (5) is the period that,

(a) begins on the day the landlord gives the notice of termination under section 48; and

(b) ends one year after the former tenant vacates the rental unit. 2017, c. 13, s. 10.

Note: On a day to be named by proclamation of the Lieutenant Governor, section 57 of the Act is amended by adding the following subsection: (See: 2023, c. 10, Sched. 7, s. 4 (1))

Presumption, prescribed period of time

(6.1) For the purposes of an application under clause (1) (a), if no person referred to in clause 48 (1) (a), (b), (c) or (d) occupied the rental unit within the prescribed period of time after the former tenant vacated the rental unit, it is presumed, unless the contrary is proven on a balance of probabilities, that,

(a) the landlord gave the notice of termination under section 48 in bad faith; and

(b) the rental unit was not occupied within a reasonable time after the former tenant vacated the rental unit. 2023, c. 10, Sched. 7, s. 4 (1).

Application of subs. (5) and (6)

(7) Subsections (5) and (6) apply with respect to an application under clause (1) (a) if the application is made on or after the day section 10 of the *Rental Fairness Act, 2017* comes into force and is based on a notice of termination given under section 48 on or after that day. 2017, c. 13, s. 10.

Note: On a day to be named by proclamation of the Lieutenant Governor, subsection 57 (7) of the Act is repealed and the following substituted: (See: 2023, c. 10, Sched. 7, s. 4 (2))

Application of subs. (6.1)

(7) Subsection (6.1) applies with respect to an application under clause (1) (a) if the application is made on or after the day subsection 4 (1) of Schedule 7 to the *Helping Homebuyers, Protecting Tenants Act, 2023* comes into force. 2023, c. 10, Sched. 7, s. 4 (2).

Transition

(8) This section, as it read immediately before subsection 9 (1) of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force, continues to apply with respect to an application under subsection (1) that is made before that day and has not been finally determined before that day, even if the hearing of the application is on or after that day. 2020, c. 16, Sched. 4, s. 9 (2).

▼ Section Amendments with date in force (d/m/y)

Former tenant's application, failure to afford tenant right of first refusal

57.1 (1) The Board may make an order described in subsection 57 (3) if, on application by a former tenant of a rental unit, the Board determines that the landlord was required to afford the former tenant a right of first refusal under section 53 and failed to do so. 2017, c. 13, s. 11.

Note: On a day to be named by proclamation of the Lieutenant Governor, section 57.1 of the Act is amended by adding the following subsection: (See: 2023, c. 10, Sched. 7, s. 5 (1))

Deemed failure

(1.1) A landlord who fails to comply with the requirements of subsection 53 (2.1) or (2.2) is deemed, for the purposes of subsection (1) only, to have failed to afford a former tenant a right of first refusal. 2023, c. 10, Sched. 7, s. 5 (1).

Time limitation

(2) No application may be made under subsection (1) more than two years after the former tenant vacated the rental unit. 2017, c. 13, s. 11; 2020, c. 16, Sched. 4, s. 10 (1).

Note: On a day to be named by proclamation of the Lieutenant Governor, subsection 57.1 (2) of the Act is repealed and the following substituted: (See: 2023, c. 10, Sched. 7, s. 5 (2))

Time limitation

(2) No application may be made under subsection (1) after the later of the following days:

1. The second anniversary of the day the former tenant vacated the rental unit.
2. The day that is six months after the day the repairs or renovations are completed. 2023, c. 10, Sched. 7, s. 5 (2).

Transition, application pending

(2.1) An application that was made under subsection (1) before the day subsection 10 (1) of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force and was not finally determined before that day is deemed to comply with subsection (2), as it reads on that day, if the application was made more than one year, but not more than two years, after the former tenant vacated the rental unit. 2020, c. 16, Sched. 4, s. 10 (2).

Note: On a day to be named by proclamation of the Lieutenant Governor, subsection 57.1 (2.1) of the Act is repealed. (See: 2023, c. 10, Sched. 7, s. 5 (2))

Transition, previous application dismissed

(2.2) If a previous application made by the former tenant was dismissed before the day subsection 10 (1) of Schedule 4 to the *Protecting Tenants and Strengthening Community Housing Act, 2020* comes into force for failure to comply with subsection (2), as it read before that day, the former tenant may make another application under subsection (1) more than one year, but not more than two years, after the former tenant vacated the rental unit. 2020, c. 16, Sched. 4, s. 10 (2).

Note: On a day to be named by proclamation of the Lieutenant Governor, subsection 57.1 (2.2) of the Act is repealed. (See: 2023, c. 10, Sched. 7, s. 5 (2))

Transition

(3) An application may be made under subsection (1) regardless of whether the alleged failure to afford a right of first refusal on which it is based occurred before, on or after the day section 11 of the *Rental Fairness Act, 2017* comes into force. 2017, c. 13, s. 11.

Note: On a day to be named by proclamation of the Lieutenant Governor, subsection 57.1 (3) of the Act is repealed and the following substituted: (See: 2023, c. 10, Sched. 7, s. 5 (2))

Transition, ongoing applications

(3) Subsection (2), as it reads on the day subsection 5 (2) of Schedule 7 to the *Helping Homebuyers, Protecting Tenants Act, 2023* comes into force, applies with respect to applications made but not finally determined before that day. 2023, c. 10, Sched. 7, s. 5 (2).

Transition, dismissed applications

(4) A former tenant whose application was dismissed before the day subsection 5 (2) of Schedule 7 to the *Helping Homebuyers, Protecting Tenants Act, 2023* came into force for a failure to comply with subsection (2) of this section may, subject to subsection (2) as it reads on that day, make a fresh application. 2023, c. 10, Sched. 7, s. 5 (2).

▼ Section Amendments with date in force (d/m/y)

Notice at end of term or period, additional grounds

58 (1) A landlord may give a tenant notice of termination of their tenancy on any of the following grounds:

1. The tenant has persistently failed to pay rent on the date it becomes due and payable.
2. The rental unit that is the subject of the tenancy agreement is a rental unit described in paragraph 1, 2, 3 or 4 of subsection 7 (1) and the tenant has ceased to meet the qualifications required for occupancy of the rental unit.
3. The tenant was an employee of an employer who provided the tenant with the rental unit during the tenant's employment and the employment has terminated.

4. The tenancy arose by virtue of or collateral to an agreement of purchase and sale of a proposed unit within the meaning of the *Condominium Act, 1998* in good faith and the agreement of purchase and sale has been terminated. 2006, c. 17, s. 58 (1).

Note: On a day to be named by order of the Lieutenant Governor in Council, section 58 of the Act is amended by adding the following subsection: (See: 2025, c. 14, Sched. 12, s. 3)

Persistent late payment

(1.1) For the purposes of paragraph 1 of subsection (1), what constitutes a persistent failure to pay rent on the date it becomes due and payable shall be determined in accordance with the regulations, if any. 2025, c. 14, Sched. 12, s. 3.

Period of notice

(2) The date for termination specified in the notice shall be at least the number of days after the date the notice is given that is set out in section 44 and shall be the day a period of the tenancy ends or, where the tenancy is for a fixed term, the end of the term. 2006, c. 17, s. 58 (2).

Rent-geared-to-income assistance

(3) For greater certainty, paragraph 2 of subsection (1) does not authorize a landlord to give a tenant notice of termination of the tenancy on the ground that the tenant has ceased to be eligible for, or has failed to take any step necessary to maintain eligibility for, rent-geared-to-income assistance as defined in section 38 of the *Housing Services Act, 2011*. 2016, c. 25, Sched. 5, s. 1.

▼ Section Amendments with date in force (d/m/y)

NOTICE BY LANDLORD BEFORE END OF PERIOD OR TERM

Non-payment of rent

59 (1) If a tenant fails to pay rent lawfully owing under a tenancy agreement, the landlord may give the tenant notice of termination of the tenancy effective not earlier than,

(a) the 7th day after the notice is given, in the case of a daily or weekly tenancy; and

(b) the 14th day after the notice is given, in all other cases. 2006, c. 17, s. 59 (1).

Note: On a day to be named by order of the Lieutenant Governor in Council, subsection 59 (1) of the Act is repealed and the following substituted: (See: 2025, c. 14, Sched. 12, s. 4)

Non-payment of rent

(1) If a tenant fails to pay rent lawfully owing under a tenancy agreement, the landlord may give the tenant notice of termination of the tenancy effective not earlier than the 7th day after the notice is given. 2025, c. 14, Sched. 12, s. 4.

Contents of notice

(2) The notice of termination shall set out the amount of rent due and shall specify that the tenant may avoid the termination of the tenancy by paying, on or before the termination date specified in the notice, the rent due as set out in the notice and any additional rent that has become due under the tenancy agreement as at the date of payment by the tenant. 2006, c. 17, s. 59 (2).

Notice void if rent paid

(3) The notice of termination is void if, before the day the landlord applies to the Board for an order terminating the tenancy and evicting the tenant based on the notice, the tenant pays,

(a) the rent that is in arrears under the tenancy agreement; and

(b) the additional rent that would have been due under the tenancy agreement as at the date of payment by the tenant had notice of termination not been given. 2006, c. 17, s. 59 (3).

▼ Section Amendments with date in force (d/m/y)

Termination for cause, misrepresentation of income

60 (1) A landlord may give a tenant notice of termination of the tenancy if the rental unit is a rental unit described in paragraph 1, 2, 3 or 4 of subsection 7 (1) and the

tenant has knowingly and materially misrepresented his or her income or that of other members of his or her household. 2006, c. 17, s. 60 (1); 2013, c. 3, s. 26.

Notice

(2) A notice of termination under this section shall set out the grounds for termination and shall provide a termination date not earlier than the 20th day after the notice is given. 2006, c. 17, s. 60 (2).

▼ Section Amendments with date in force (d/m/y)

Termination for cause, illegal act

61 (1) A landlord may give a tenant notice of termination of the tenancy if the tenant or another occupant of the rental unit commits an illegal act or carries on an illegal trade, business or occupation or permits a person to do so in the rental unit or the residential complex. 2006, c. 17, s. 61 (1).

Notice

(2) A notice of termination under this section shall set out the grounds for termination and shall provide a termination date not earlier than,

(a) the 10th day after the notice is given, in the case of a notice grounded on an illegal act, trade, business or occupation involving,

(i) the production of an illegal drug,

(ii) the trafficking in an illegal drug, or

(iii) the possession of an illegal drug for the purposes of trafficking; or

(b) the 20th day after the notice is given, in all other cases. 2006, c. 17, s. 61 (2).

Definitions

(3) In this section,

“illegal drug” means a controlled substance or precursor as those terms are defined in the *Controlled Drugs and Substances Act* (Canada); (“drogue illicite”)

“possession” has the same meaning as in the *Controlled Drugs and Substances Act* (Canada); (“possession”)

“production” means, with respect to an illegal drug, to produce the drug within the meaning of the *Controlled Drugs and Substances Act* (Canada); (“production”)

“trafficking” means, with respect to an illegal drug, to traffic in the drug within the meaning of the *Controlled Drugs and Substances Act* (Canada). (“trafic”) 2006, c. 17, s. 61 (3).

Termination for cause, damage

62 (1) A landlord may give a tenant notice of termination of the tenancy if the tenant, another occupant of the rental unit or a person whom the tenant permits in the residential complex wilfully or negligently causes undue damage to the rental unit or the residential complex. 2006, c. 17, s. 62 (1).

Notice

(2) A notice of termination under this section shall,

- (a) provide a termination date not earlier than the 20th day after the notice is given;
- (b) set out the grounds for termination; and
- (c) require the tenant, within seven days,
 - (i) to repair the damaged property or pay to the landlord the reasonable costs of repairing the damaged property, or
 - (ii) to replace the damaged property or pay to the landlord the reasonable costs of replacing the damaged property, if it is not reasonable to repair the damaged property. 2006, c. 17, s. 62 (2).

Notice void if tenant complies

(3) The notice of termination under this section is void if the tenant, within seven days after receiving the notice, complies with the requirement referred to in clause (2) (c) or makes arrangements satisfactory to the landlord to comply with that requirement. 2006, c. 17, s. 62 (3).

Termination for cause, damage, shorter notice period

63 (1) Despite section 62, a landlord may give a tenant notice of termination of the tenancy that provides a termination date not earlier than the 10th day after the

notice is given if the tenant, another occupant of the rental unit or a person whom the tenant permits in the residential complex,

- (a) wilfully causes undue damage to the rental unit or the residential complex; or
- (b) uses the rental unit or the residential complex in a manner that is inconsistent with use as residential premises and that causes or can reasonably be expected to cause damage that is significantly greater than the damage that is required in order to give a notice of termination under clause (a) or subsection 62 (1). 2006, c. 17, s. 63 (1).

Notice

(2) A notice of termination under this section shall set out the grounds for termination. 2006, c. 17, s. 63 (2).

Non-application of s. 62 (2) and (3)

(3) Subsections 62 (2) and (3) do not apply to a notice given under this section. 2006, c. 17, s. 63 (3).

Termination for cause, reasonable enjoyment

64 (1) A landlord may give a tenant notice of termination of the tenancy if the conduct of the tenant, another occupant of the rental unit or a person permitted in the residential complex by the tenant is such that it substantially interferes with the reasonable enjoyment of the residential complex for all usual purposes by the landlord or another tenant or substantially interferes with another lawful right, privilege or interest of the landlord or another tenant. 2006, c. 17, s. 64 (1).

Notice

(2) A notice of termination under subsection (1) shall,

- (a) provide a termination date not earlier than the 20th day after the notice is given;
- (b) set out the grounds for termination; and
- (c) require the tenant, within seven days, to stop the conduct or activity or correct the omission set out in the notice. 2006, c. 17, s. 64 (2).

Notice void if tenant complies

(3) The notice of termination under subsection (1) is void if the tenant, within seven days after receiving the notice, stops the conduct or activity or corrects the omission. 2006, c. 17, s. 64 (3).

Termination for cause, reasonable enjoyment of landlord in small building

65 (1) Despite section 64, a landlord who resides in a building containing not more than three residential units may give a tenant of a rental unit in the building notice of termination of the tenancy that provides a termination date not earlier than the 10th day after the notice is given if the conduct of the tenant, another occupant of the rental unit or a person permitted in the building by the tenant is such that it substantially interferes with the reasonable enjoyment of the building for all usual purposes by the landlord or substantially interferes with another lawful right, privilege or interest of the landlord. 2006, c. 17, s. 65 (1).

Notice

(2) A notice of termination under this section shall set out the grounds for termination. 2006, c. 17, s. 65 (2).

Non-application of s. 64 (2) and (3)

(3) Subsections 64 (2) and (3) do not apply to a notice given under this section. 2006, c. 17, s. 65 (3).

Termination for cause, act impairs safety

66 (1) A landlord may give a tenant notice of termination of the tenancy if,

- (a) an act or omission of the tenant, another occupant of the rental unit or a person permitted in the residential complex by the tenant seriously impairs or has seriously impaired the safety of any person; and
- (b) the act or omission occurs in the residential complex. 2006, c. 17, s. 66 (1).

Same

(2) A notice of termination under this section shall provide a termination date not earlier than the 10th day after the notice is given and shall set out the grounds for